The strength of the assembly is fixed at 70 members, directly elected by the people. The elections are conducted by the election commission of India. The assembly can make laws on all the matters of the State List and the Concurrent List except the three matters of the State List, that is, public order, police and land. But, the laws of Parliament prevail over those made by the Assembly.

The strength of the council of ministers is fixed at ten per cent of the total strength of the assembly, that is, seven—one chief minister and six other ministers. The chief minister is appointed by the President (not by the lt. governor). The other ministers are appointed by the President on the advice of the chief minister. The ministers hold office during the pleasure of the President. The council of ministers is collectively responsible to the assembly.

The council of ministers headed by the chief minister aid and advise the lt. governor in the exercise of his/her functions except in so far as he/she is required to act in his/her discretion. In the case of difference of opinion between the lt. governor and his/her ministers, the lt. governor is to refer the matter to the President for decision and act accordingly.

When a situation arises in which the administration of the territory cannot be carried on in accordance with the above provisions, the President can suspend their (above provisions) operation and make the necessary incidental or consequential provisions for administering the territory. In brief, in case of failure of constitutional machinery, the President can impose his/her rule in the territory. This can be done on the report of the lt. governor or otherwise. This provision resembles Article 356 which deals with the imposition of President's Rule in the states.

The lt. governor is empowered to promulgate ordinances during recess of the assembly. An ordinance has the same force as an act of the assembly. Every such ordinance must be approved by the assembly within six weeks from its reassembly. He can also withdraw an ordinance at any time. But, he cannot promulgate an ordinance when the assembly is dissolved or suspended. Further, no such ordinance can be promulgated or withdrawn without the prior permission of the President.

Advisory Committees of Union Territories

Under the Government of India (Allocation of Business) Rules 1961, Ministry of Home Affairs is the nodal ministry for all matters of Union Territories relating to legislation, finance and budget, services and appointment of Lt. Governors and Administrators.

All the five UTs without legislature (Andaman and Nicobar Islands, Chandigarh, Dadra and Nagar Haveli and Daman and Diu, Lakshadweep and Ladakh) have the forum of Home Minister's Advisory Committee (HMAC)/Administrator's Advisory Committee (AAC). While HMAC is chaired by the Union Home Minister, AAC is chaired by the Administrator of the concerned UTs. The Members of Parliament and elected members from the local bodies (District Panchayats and Municipal Councils) of the respective UTs are members of these committees among others. These Committees discusses the general issues relating to social and economic development of the UTs.[6]

Table 41.1 Administrative System of Union Territories at a Glance